

Dr Janardhan Reddy, consultant psychiatrist, National Institute of Mental Health, Bangalore, is not surprised: "Perpetrators of grisly serial crimes are people with no conscience, remorse, ability to love or empathy, and are incapable of having meaningful relationships."

Before THOA pushed the trade underground, he was the facilitator, bringing together wealthy patients in need of a kidney, poor people who wanted to make money by selling one, and doctors to perform the operations. The network he operated consisted of over two-dozen doctors, helpers as well as touts, who would keep an eye on patients visiting various hospitals for dialysis and approach them with proposals for transplant. The donors were given anything between Rs 50,000 and Rs 1 lakh for their organs, which were then sold for 10 times as much to rich Indians and foreigners. In medical circles, there is talk of eminent nephrologists from across India (especially from Chennai) being involved, as Kumar allegedly "blind-folded" them and led them to his state-of-the-art operation theatre, making them perform surgeries and handing out Rs 30,000-40,000.

"The beauty of his outfit was that none of his cronies was fully clued in about the whole system," says Saini. "The donors were kept in the outlying woodland, the recipients were housed in his other properties in and around Gurgaon, while the touts and assis-

HOW HE STAYED AHEAD OF THE LAW

THE LOOPHOLES

- Before 1994, organ transplants were legal. The accused could only be punished under IPC for cheating.
- THOA 1994 is bailable, non-cognisable, with a maximum punishment of seven years.
- The kidney seller is also liable to be punished under the Act.
- Centre legislates but since health is a state subject, states are not obliged to abide by the rules.
- Some states have poor medical ethics and lax regulation.

HOW HE EXPLOITED THEM

- Kumar exploited poor patients by faking affidavits. He sold the kidneys for 10 times the price he paid to the seller.
- The doctor jumped bail and moved to another state and to Canada. He bribed his way through the system and hired lawyers to keep the cases going.
- He silenced touts by forcing them to sell their own kidneys to him.
- Kumar's trade flourished in states where THOA was not being implemented.
- He set up shop in Gurgaon more than once.



TRAUMA CENTRE: Police at the operation theatre in Gurgaon

tants were briefed only about the work that they were paid to do." Their silence was ensured by the fact that most of them had sold their own kidneys to the doctor. Lax regulations for registering private hospitals helped him keep the business clandestine. One of his moles in the police is believed to have leaked the news of Saini's raid and helped him flee.

After just a few years of running this racket, he had made enough money to

buy a hotel in downtown Mumbai and finance a few C-grade Bollywood films, also bagging a walk-on role of a police inspector in a nondescript thriller, *Khooni Raat*. The title was a grim portent of what was to come: neighbours spotted blood flowing down drains near his Gurgaon nursing home.

Which brings us to the question: does the task of surveillance rest only with the law-enforcers? Outside Kumar's posh, three-storey, residence-cum-hospital, neighbours are now talking about stray swabs of cotton, blood-stained clothes, bandages and empty medicine pouches found in two adjacent vacant plots. But no one ever blew the whistle. "We never had any interaction with the owner," responds a neighbour reluctantly. The big iron gates of the mansion were open only to a select few and the domestic help kept to themselves. Some neighbours recall his two cars—a Honda City and a red Mercedes—always parked outside the gates. Others caught sight of foreigners, who came in and left after a few days.

"It was all very strange. Even the drivers wore gold rings and chains," says another neighbour. As residents kept their distance, Kumar happily ran his network right in the middle of city buzz.

The long arm of the law has finally nabbed Kumar. But will he find a way to slip away again? One characteristic of the law is that it is bailable, but non-cognisable, that is, it cannot be directly initiated by the police. "It's not just an ordinary crime under the

Indian Penal Code. It's a special Act and the police's hands are tied," says Saini.

The onus now rests on CBI to nail Kumar and ensure that he finally pays for his crimes. ■

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MANZIL SAINI, ASP, MORADABAD